

of an assessment in respect of property, and includes any sum which, though obtained in the first instance by a precept, certificate, or other document requiring payment from some authority or officer, is or can be ultimately raised out of a rate.

The expression "representatives of the press" means duly accredited representatives of newspapers and duly accredited representatives of news agencies which systematically carry on the business of selling and supplying reports and information to newspapers.

Saving for committee meetings.

3. This Act shall not extend to any meeting of a committee of a local authority, as defined for the purposes of this Act, unless the committee is itself such an authority.

Powers of committee.

4. Nothing in this Act shall be construed so as to prohibit a committee of a local authority from admitting representatives of the press to its meetings.

Admission of the public.

5. Nothing in this Act shall be construed so as to prohibit a local authority from admitting the public to its meetings.

Application to Scotland.

6. In the application of this Act to Scotland—

(1) The expression "local authority" means—

(a) a county council, a town council, a parish council, a school board, and a district committee constituted under the Local Government (Scotland) Acts;

(b) a central body and a distress committee under the Unemployed Workmen Act, 1905;

(c) any other local body, board, joint board, or committee which has or may hereafter have the power to impose a rate as defined in section two of this Act, and which does not require to report its proceedings to any other local authority;

(2) The definition of the expression "local authority," in section two of this Act, shall not apply to Scotland.

Short title and extent.

7.—(1) This Act may be cited as the Local Authorities (Admission of the Press to Meetings) Act, 1908.

(2) This Act shall not extend to Ireland.

CHAPTER 44.

An Act to regulate the turning out upon Commons of Entire Animals. [21st December 1908.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1.—(1) The persons for the time being entitled to turn out animals on a common at a meeting convened in manner provided by this Act may, by a resolution passed by a majority in value of interest of the persons present by themselves or by their proxy or attorney,—

Power of making regulations as to the turning out of entire animals on commons.

- (a) Make, alter, or revoke regulations for determining the times, if any, at which and the conditions under which entire animals or entire animals of any class or description or age specified in the regulation may be upon the common, and for authorising the removal by an officer appointed to enforce the regulations of any animal found upon the common in contravention of the regulations, and the detention and disposal of any animal so removed, and for raising such sums as may be necessary for defraying expenses incurred in making, publishing, or enforcing the regulations, either by annual contributions payable by the persons for the time being entitled to turn out animals on the common, or by way of an annual payment in respect of each animal turned out on the common, and for prescribing the person to receive or sue for such payments ;
- (b) Appoint and remove, or provide for the appointment and removal of, officers to enforce any such regulations ;
- (c) Constitute and regulate the constitution of a committee consisting of persons entitled to turn out animals on the common, and delegate to the committee such of the powers exercisable by resolution under this Act as may be specified in the resolution ;

but no such regulations and no alteration or revocation thereof shall take effect unless and until they have been confirmed by the Board of Agriculture and Fisheries, and the Board may confirm them either without modification or subject to such modifications as the Board, after considering any objections by persons appearing to the Board to be interested, consider desirable.

(2) The owner of any animal which is found on any common in contravention of a regulation made under this Act, and any person who obstructs any officer appointed under this Act in the execution or enforcement of a regulation, shall be liable on summary conviction to a fine not exceeding two pounds, or in the case of a continuing offence not exceeding ten shillings for every day during which the offence continues ; and where a fine is recovered on the information of an officer appointed under this Act the court may direct the whole or any part of the penalty to be paid to such officer, to be applied by him towards the expenses of enforcing the regulations made under this Act.

(3) A meeting for the purposes of this Act may be convened in respect of any common by the Board of Agriculture and Fisheries upon the application of any three persons claiming to be entitled to turn out animals upon the common or of the

council of the county in which any part of the common is situate.

(4) The value of the interest of any person for the time being entitled to turn out animals on a common shall be ascertained, and a meeting for the purposes of this Act shall be convened and held, and proxies and attorneys shall be appointed, in accordance with rules made by the Board of Agriculture and Fisheries.

(5) If any question arises as to whether a resolution has been passed by the required majority, the question shall be settled by the Board of Agriculture and Fisheries, whose decision shall be final for the purposes of this Act, but such decision shall not otherwise affect or prejudice any right or claim in respect of the common.

(6) No regulation approved by the Board of Agriculture and Fisheries shall be questioned on the ground of informality, and the Documentary Evidence Acts, 1868 to 1895, shall apply to regulations so approved as if they were regulations issued by the Board.

(7) For the purposes of this Act two or more adjoining commons may, by order of the Board of Agriculture and Fisheries, be declared to be one common, and shall be treated as such accordingly.

(8) This Act shall apply to a common notwithstanding that the soil of the common is vested in His Majesty by right of His Crown or His Duchy of Lancaster or forms part of the possessions of the Duchy of Cornwall, but shall not apply to the New Forest or to any common in respect of which the conservators or other body appointed by or under any Act of Parliament to regulate the common have powers of making byelaws in respect of matters for which regulations may be made under this Act.

(9) In this Act the expression "animals" means horses, asses, cattle, sheep, goats, and swine, and the expression "common" includes any commonable land.

Application of
Act to Dart-
moor.

2. The powers by this Act conferred on the persons for the time being entitled to turn out animals on a common (except the power to raise money) may in the case of the forest or chase of Dartmoor be exercised by the Duke of Cornwall, but so that a regulation shall not be submitted for confirmation until it has been approved by a resolution passed by a majority in value of interest of the persons for the time being entitled to turn out animals on the forest or chase, present by themselves or by their proxy or attorney at a meeting of such persons convened in manner provided by this Act, and the provisions of this Act shall apply to the forest or chase accordingly.

Short title and
extent.

3.—(1) This Act may be cited as the Commons Act, 1908.

(2) This Act shall not extend to Scotland or Ireland.